worldwide, One ought purpose is explicit
explicit in the records of mans endeavour:
- the right to pursue their welfare.

These ideals imply conception of rights
which would in experience + purpose
without which men feel unfree

in a spiritual fulfilment
That exists for
in The eternal.

Rights are rights ~~[illegible]~~ recognized

in the supreme court of history

Validity of the claims of human nature

not dependent on the interpretation or application given by any human

political agency. but upon the

response & application of human

beings throughout ~~[illegible]~~ endeavor &

aspiration, All that men would

they seek to express in daily life &

AMERICAN FEDERATION OF LABOR

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"CLOSED SHOP"

Statement by the Methodist Federation for Social Service
Page 244 - Perman's "Closed Shop".

An extensive campaign is being carried on throughout the country for the "open shop" - the "American plan of employment". It appears in various localities under the direction of local organizations of manufacturers, or manufacturers and merchants and chambers of commerce. It is being promoted by national organizations and publications. This movement is the embodiment of a determination repeatedly expressed in war time by certain leaders of finance and industry to "put labor in its place after the war". It is in effect a declaration of war against trade unions. It proposes to destroy the gains that were made in stabilizing industry and establishing social security by the War Labor Board.

This "open shop" campaign appeals for the support of the public on the ground that it is now opposed to trade unions, but is merely resisting the evils involved in the "closed shop" and it has gained the support of many who sincerely have this purpose in mind. Yet in the ranks of its leaders are to be seen those who have long been agressively fighting labor organizations as such, and among its active supporters are those whose "open shop" policy is to refuse union membership, or to require an applicant to sign a contract pledging himself against affiliation with a union.

The first method of realizing democracy in industry is through collective bargaining. This gives wage earners as a group the right to determine in conference with their employers the terms and conditions of employment.

The general Conference of 1912 stated:

> The autocratic control of industry by any group of men without regards to the rights, either of other groups who contribute to the industrial process or of the public is contrary to Christian standards.

The Methodist Board of Bishops declared in 1919:

> We favor collective bargaining as an instrument for the attainment of industrial justice and for training in democratic procedure.

1922 - Statement issued by Nat. Catholic Welfare Council 1920
Page 80 - Berman's "Closed Shop".

The "open shop" drive of certain groups of American employers is becoming so strong that it threatens not only the welfare of wage earners, but the whole structure of industrial peace and order. Employers sometimes favor the "open shop" because they do not want to be limited in the employment of men to union members. But the present drive is not of that kind. The evidence shows that in its organized form it is not merely against the "closed shop", but against collective bargaining. Of what avail is it for workers to

A PROPOSAL:

Collective bargaining for the purpose of of negotiating an agreement between management and workers covering wages, hours and working conditions and providing means en procedures for its enforcement, is the major responsibility of all unions. Each union develops technics and procedures out of its own special work conditions and industry. Workers elected to offices where they must perform these responsible duties learn from the past experience of others and add their own ingenuity. International officers maintain central files of agreements to aid in administrative work and to service their locals. The American Federation of Labor maintains a file of agreements of federal unions. The Bureau of Labor Statistics maintains a national file available for office reference and for staff analysis. Occasionally the Bureau publishes information of new trends and comparative extracts from agreements showing how unions have handled the same or similar conditions.

Collective bargaining and union agreements are foundations upon which the union structure grows. They are our main dependence for economic progress, for good labor conditions and for the prevention of production stoppages due to strikes and lockouts. It is important that not only should Labor realize the services that collective bargaining has rendered but that the public be kept informed, and the facts made available to serve as a guide to Members of Congress.

be permitted by their employers to become members of unions, if the employers will not deal with the unions? The workers might as well join golf clubs as labor unions if the present "open shop" campaign is successful.

The "open shop" drive masks under such names as "The American Plan" and hides behind the pretence of American freedom. Yet its real purpose is to destroy all effective labor unions, and thus subject the working people to the complete domination of the employers. Should it succeed in the measure that its proponents hope it will thrust far into the ranks of the underpaid the body of American working people.

Statement issued by Federal Council of the Churches of Christ in America Dec. 27, 1920 - Beman's Closed Shop Page 81.

The relation between employers and workers throughout the U. S. are seriously affected at this moment by a campaign which is, being conducted for the "open shop" policy of employment. This term is being frequently used to designate establishments that are definitely anti-union. Obviously, a shop of this kind is not an "open shop" but a "closed shop" - closed against members of labor union. We feel impelled to call public attention to the fact that a very widespread impression exists that the present "open shop" campaign is inspired in many quarters by this antagonism to union labor. Many disinterested persons are convinced that an attempt is being made to destroy the organized labor movement. Any such attempt must be viewed with apprehension by fair minded people. It seems incumbent upon Christian employers to scrutinize carefully any movement, however plausible, which is likely to result in denying to the workers such affiliation as will in their judgement best safeguard their interest and promote their welfare and to precipitate disastrous industrial conflicts at a time when the country needs goodwill and cooperation between employers and employees.

The Open Shop - San Gompers, November 1903

"The open shop is represented as the embodiment of a great principle - the principle of equal rights and equal opportunity. The Declaration of Independence, the Constitution, the Bible, are quoted in support of the open shop. Organized labor is denounced in the bitterest terms for daring to demand so unpatriotic, un-American and immoral a thing.

But the open shop proposition implies that organized labor must give up, not a special privilage improperly held, but the common and fundemental right to refuse to work with the non-union men. Why should labor give up this legal and moral right? The right is of the same class and importance as the right to quite work. It is fundamental. To give it up would be to restore salvery and to make slaves of the most skilled and competent of American workmen.

And why should not the union man work with and beside the non-union man? That, frankly, is none of the employers business. Labor is under no obligation to justify its likes and dislikes to him. We were constantly told that supply and demand regulated the employment of labor and that the market was free and should remain so. This being the case (we grant it for the arguments sake) The workmen may say to the employer that he will not work for him except on certain terms, which terms may include an agreement on the employers part, to engage no men obnoxious to him.

The union closed shop is an American institution - as American as the Clothing Manufacturers Association. The law of the land gives the employer the right to hire any labor he can get. The law does not give the employer the freedom to impress workmen, to enslave them, to drag them into his factory on any terms he chooses to grant them in the excercise of his "berevolence". He has the right to bid, to make a contract. But the workman has the same rights.

Now since every man has the right to sell his labor as he sees fit, he has the right <u>not to sell it</u> to the employer who wants an open shop.

A manufacturer may buy all his raw material, all his machinery, from one company. No one is idiotic enough to tell him that he must patronize a dozen difference companies. Why may he not buy all his labor of one union?

The union shop is not contrary to public policy because public policy demands above all things the preservation of the rights of contract. It is true that the "closed" or union shop contract, like contracts for the supply of raw material, machinery, etc., by particular persons, "tends to create limited, partial monopolies," but the law never has and does not now penetrate again "limited partial monopolies".

In short decisions against the union or "closed" shop are founded on ignorant or prejudiced perversions of all contract law and fundamental individual rights.

Union and Non-Union Shop

By Frank Morrison, former Sec.

The terms "Closed Shop" and "open shop" are misapplied in designating labor policies of employers. The proper terms are 'union shop' and 'non-union shop.

In the union shop the employer recognizes the right of his employees to join unions of their trades and callings and be represented by delegates of the unions in negotiating terms of employment. In other words such an employer accords to wage workers in his employ the recognition of their inherent and constitutional right of association to deal in a protective and intelligent way with the matters which affect intimately their life and labor.

In a non-union shop an employer refuses to recognize the right of his employees to conduct negotiations with him looking to regulating conditions of employment through union representatives. Some employers may not discriminate against workers holding union cards and may be honest in their conviction that they assume the fair attitude when they leave it to the free will and choice of the individual worker as to whether he or she shall belong to a union. In the final analysis even though an employer may be neutral with regard to the right of his employes to belong to a union, if he refuses to deal with the union in deciding conditions of employemtn, he enforces a non-union policy.

After the close of World War I there was a concerted drive inaugurated by large corporations to destroy the organizations of labor. They set out to establish the so-called "American Plan" adopting this title to disguise the purpose of the campaign. Their propaganda charged that trade unions were un-American in principle and deprived workers of freedom of contract in accepting employment.

The application of the "American Plan" soon proved its real purpose was to prevent trade union organization of workers. The plan failed to deceive workers or to discourage their interest and movement to combine in trade unions. This individual contract, sometimes referred to as the "yellow dog contract" was used as a basis to grant injunctions against unions endeavoring to organize workers employed under these contracts. Labor secured legislation outlawing this type of contract and declared them to be null and void as against public policy and prohibited any federal court from giving force or validity to such so-called contracts.

It is one of the inconsistencies of our social system to recognize the right of association in all relationships of life, social, political and industrial, except the excersise of that right by Wage Workers.

Trade unionism is a social force because it is morally and ethically sound, It is never found pleading for special privileges. Its creed is all embracing regardless of sex, religion, politics nationality, or color.

Typical Labor Injunction Case

Alden Bros. Co.
vs.
Dunn

(This decree was affirmed September 13, 1928, by the Supreme Judicial Court Mass. Advance Sheets, 1928, p. 1555, 162 N.E.773.)

The following injunction and report of proceedings thereon are taken from Boston Evening Transcript, April 8, 1927, p. 1:

One of the most drastic court orders ever issued in a labor case in Massachusetts came from Judge Morton of the Superior Court, equity motion session, today when, on motion of William P. Everts and Andrew J. Aldridge, counsel for Alden Bros. Company, milk dealers, and others, he perpetually enjoined all of the 800-odd officers and members of Local 380, Milk Wagon Drivers & Creamery Workers' Union from interfering with the business of the milk companies.

The injunction forbids the union from "obstructing, annoying,, intimidating or interfering with any person or persons who now are or hereafter may be in its employ, or desirous of entering the same, or by intimidating, annoying, threatening, hindering or obstructing any person or persons transacting business with the complainant, or desirous of entering into contracts, or other business relations with the complainant, from transacting such business or from entering into such contracts, or other business relations, or by intimidating or inducing any person or persons to abstain from doing business with the complainants or performing contracts which such person or persons may have with the complainant.

"From entering into or carrying out any scheme or design among themselves, or with others, for the purpose of annoying, intimidating, obstructing, hindering or interfering with, in any manner, any person or persons who now are or hereafter may be in the employ of the complainant or desirous of entering the same, or hindering in any manner any person or persons who now are or hereafter may be transacting business with the complainant."

The injunction forbids "picketing the premises of the complainant or causing others to picket the premises; from annoying, following, intimidating or obstructing any person or persons who now are or hereafter may be in the employ of the complainant while engaged in their employment, or while proceeding to or from their place of work, abode, habitation, or employment, and the premises of the complainant."

The union men are prevented from "impeding, obstructing, interfering with, hindering or soliciting the trade or customers of the complainant for the purpose of inducing or persuading them not to patronize, trade or deal with the complainant."

The concluding paragraph of the injunction establishes a precedent in labor litigation here. It recites that the unincorporated society (the union) or association, its officers, servants, agents, members thereof, the respondents herein, pay to the complainant forthwith the sum of $60,647 as damages with interest and costs of court, which will be compiled by James McDermott, clerk of the equity court.

The decree of the court includes the names of all the officers and members of the local.

Frederick W. Mansfield, counsel for the union, strenuously objected to the allowance of the decree in the form it was in, especially regarding the naming of all members of the union. He thought that the court should single out the men who were on strike and who might have had a hand in the damage to the milk companies' property rather than name all members, many of whom were in no way responsible for whatever happened. Judge Morton, however, allowed the decree to stand and the case will now go to the full bench of the Supreme Court on appeal by Mr. Mansfield.

(Felix Frankfurter and Nathan Greene, The Labor Injunction, The Macmillan Company, New York: 1930. P.273-274.)

MAT:MAJ

Source: Strike Injunction [illegible]
April, 1937.

February 11, 1948.

Mr. Joseph M. Rourke, Secretary-Treasurer,
Connecticut Federation of Labor,
P. O. Box 584,
Bridgeport, Connecticut.

Dear Sir and Brother:

For some time we have been endeavoring to do something about our organizing literature but our resources are limited and there have been so many new problems on which work could not be delayed that it has been difficult to find the time.

We surely appreciate the need for keeping literature current and will be glad to have from time to time suggestions on needed additions.

Fraternally yours,

President,
American Federation of Labor.

mes,

TIMOTHY M. COLLINS, PRESIDENT
1806 MILL PLAIN ROAD
FAIRFIELD, CONN.

JOSEPH M. BOURKE, SECRETARY-TREASURER
P. O. BOX 554
BRIDGEPORT, CONN.

CONNECTICUT FEDERATION OF LABOR

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J. LAWRENCE O'TOOLE
ASSISTANT SECRETARY

27

January 22, 1948

RECEIVED
JAN 23 1948

Mr. William Green, President
American Federation of Labor
A.F.L. Building
Washington, D. C.

Dear Mr. Green:

I would appreciate it very much if you will take into consideration the following facts:

I have received numerous complaints from some of our people who have been using the A.F.L. literature in organizing campaigns. It is their feeling and mine that it is out of date and antiquated, and perhaps was written about twenty years ago.

Furthermore, the authorization cards now in use are authorization cards that were in order under the Wagner Act before it was emasculated by the Taft-Hartley amendments.

In my humble opinion the A.F.L. is missing the boat by not playing up the fact that practically everyone in America today is serviced by A.F.L. union members. For example, when we get up in the morning and we ride to work on a bus or trolley car, the A.A. St. Railway furnishes us that service. If we eat in restaurants during the day, we are served by A.F.L. members. If we want entertainment in the evening, motion picture operators and stage hands help furnish the entertainment, and the actors on the stage are members of the A.F.L.

Will you please give this matter your deep and earnest consideration. We must remember that we are living in 1948 and we must have 1948 plans in order to do the right job. I know the tremendous amount of work that you must have on your shoulders and I know how well you have carried this responsibility. However, I feel it is necessary to call these facts to your attention, and I hope that something can be done about it. I will appreciate hearing from you on this matter, and will you also forward to me

- -

about 200 pieces of literature for general organizing purposes.

Sincerely yours,

Joseph M Rourke

Joseph M. Rourke
Secretary-Treasurer
Connecticut Federation of Labor

jmr/lh
oeiu-123

NATIONAL LABOR RELATIONS BOARD
Washington, D. C.

RELEASE FOR AFTERNOON PAPERS
TUESDAY, AUGUST 19, 1947

(R-6245)

GENERAL COUNSEL DENHAM ISSUES NON-COMMUNIST AFFIDAVIT FORMS

N. L. R. B. General Counsel Robert N. Denham today announced the issuance and availability of non-Communist affidavit forms as required by the Labor-Management Relations Act.

The law provides that union officers must file such affidavits before the Board can (1) process a petition for an election, (2) issue an unfair labor practice complaint, or (3) entertain a petition for a union shop referendum.

Mr. Denham stated that officers of national, international and parent labor organizations should file the affidavit forms with the Washington office of the Board. Officers of local unions are to file affidavit forms with the Board's regional or sub-regional office which would normally act on their cases.

The one-page affidavit form carries the following statement: "I am not a member of the Communist Party or affiliated with such party. I do not believe in and I am not a member of or support any organization that believes in or teaches the overthrow of the United States Government by force or by any illegal or unconstitutional methods."

At the bottom of the affidavit form appears this warning: "Any fraudulent statement or misrepresentation in this affidavit is subject to punishment of $10,000 fine, or 10 years in prison, or both."

Mr. Denham said that the term "officer" shall include all persons described as "officers" in the international, national and/or local constitutions and by-laws.

Union officers, Mr. Denham added, must renew affidavits every year. Also, new affidavits must be filed after every election of union officers and whenever there is a change in officers.

The text of the law (Section 9 h) upon which Mr. Denham acted follows:

> "No investigation shall be made by the Board of any question affecting commerce concerning the representation of employees, raised by a labor organization under subsection (c) of this section, no petition under section 9 (e) (1) shall be entertained, and no complaint shall be issued

ursuant to a charge made by a labor organization under ubsection (b) of section 10, unless there is on file with the Board an affidavit executed contemporaneously or within the preceding twelve-month period by each officer of such labor organization and the officers of any national or international labor organization of which it is an affiliate or constituent unit that he is not a member of the Communist Party or affiliated with such party, and that he does not believe in, and is not a member of or supports any organization that believes in or teaches, the overthrow of the United States Government by force or by any illegal or unconstitutional methods. The provisions of section 35 A of the Criminal Code shall be applicable in respect to such affidavits."

THE UNITED STATES OF AMERICA
The NATIONAL LABOR RELATIONS BOARD

A F F I D A V I T

For use in conformity with section 9 (h) of the National Labor Relations Act, as amended June 23, 1947

STATE OF_____)
)
COUNTY OF_____)

I,_____, being duly sworn, depose and say:
(Name)

1. I am_____of the_____
(Name of Labor Organization)

My term of office expires on_____.

2. I am not a member of the Communist Party or affiliated with such party. I do not believe in and I am not a member of or support any organization that believes in or teaches the overthrow of the United States Government by force or by any illegal or unconstitutional methods.

_____
Name

_____
Address

_____

Subscribed and sworn to
before me this_____day
of_____,19___.

Notary Public in and for the
County of_____,
State of_____,

My commission expires_____.

NATIONAL LABOR RELATIONS BOARD
Washington, D. C.

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INJUNCTIONS - VIOLENCE

Injunctions are normally associated with the preservation of law and order in labor difficulties. There is a widespread belief that, but for injunctions, violence and bloodshed would be much more frequent and that the only alternative to the injunction is the soldier and the bayonet. This would seem to be a natural assumption but experience has shown that the injunction in most cases requires stronger policing than is necessary where no injunction is issued. Injunctions do not make acts of violence or intimidation any more unlawful than they would be without such orders. The only difference an injunction makes is that thereafter acts of violence may be punished as contempts of court.

The alleged advantages of contempt proceedings over criminal prosecutions are the more rapid disposition of such cases, the greater certainty of conviction, and the imposition of more severe sentences. However, there are some doubts regarding these claimed advantages: the procedure of obtaining an arrest for contempt is much slower and less direct than that for arrest and prosecution for crime since the person caught disobeying an injunction cannot be arrested until all the facts have been presented to the court and it has issued a show-cause order; further, contempt proceedings are usually initiated by the complainant who must bear the heavy expense of prosecution. Actually, experience shows that when crimes are committed after their prohibition in injunctions, the offenders are much more likely to be prosecuted for crime than for contempt. In many injunction cases there are no contempt proceedings at all,

while in almost every important strike there are scores of arrests on criminal charges.

Not only does experience show that injunctions rarely check violence, but there are many cases where the injunction actually gave impetus to violence. An excellent example of this fact can be drawn from the scholarly work of an expert in this field, Mr. Edwin E. Witte, writing in The Government in Labor Disputes:

> "Such a result (violence arising out of injunctions) followed the injunction which preceded the famous damage suit Coronado Coal Co. v. United Mine Workers. This case arose in the Hartford Valley in west Arkansas in the spring of 1914 and involved nine affiliated domestic mining corporations. These terminated their trade agreement with the United Mine Workers, made a contract with a private detective agency for "strike service," and barricaded their mines in preparation for war. They also incorporated a holding company in the state of West Virginia (which was referred to by Chief Justice Taft in his decision as a "hugger mugger corporation"), apparently to enable them to apply to the federal courts for an injunction. These preparations completed, the complainants secured their injunction, which included an unusual clause directing the United States marshal to swear in sufficient deputies for protection of the mines. The marshal telegraphed to the Department of Justice at Washington for authority to employ fifty additional deputies to carry out the order of the court. This authority was refused by John W. Davis, Acting Attorney-general, on the ground that this part of the court's order was unlawful; whereupon it was withdrawn.
>
> "The complainants, nevertheless, reopened one of their mines with strike breakers and guards furnished by the detective agency. The strikers and their sympathizers, already greatly incensed by the breach of the trade agreement and the issuance of the injunction, very soon clashed with the strike breakers and the strike guards; fights and shooting followed. Contempt proceedings against some of the strike leaders broke the camel's back. A great mob of union sympathizers, embracing practically everybody in the community, attacked the mine at which operations had been begun and drove off the strike breakers and guards, killing a number of them and setting fire to the mines. The mining companies then passed into the hands of a receiver, federal troops were sent to the district, some of the strike leaders were convicted of contempt and later also for conspiracy, and finally the famous

damage suit was started, which dragged on for eleven years and in the end yielded the plaintiffs only a part of their court costs and attorneys' fees." (1)

(1) The Government in Labor Disputes, Edwin E. Witte, McGraw-Hill, 1932, p. 113, 114.

THE INJUNCTION

The arbitrary and undemocratic procedure which developed in the application of injunctions to labor disputes has been summarized recently by the study, 'Labor and the Law'[1] by Professor Charles O. Gergory: p. 100-101

"An employer with a strike or other union pressure on his hands went to a judge, regardless of whether or not he was actually sitting on the bench at the time, submitted to him affidavits made out by his own agents to the effect that the strikers or other union folk were about to commit or were committing, and would continue to commit, alleged unlawful acts at his plant, all of which would cause irreparable damage to his property, and prayed for a restraining order pending suit for a permanent injunction. Judges usually issued such orders on request, frequently in the absence of anyone representing the persons to be enjoined. Sometimes these orders were directed at named individuals, but frequently they were not. And in any event they all purported to restrain everyone "whomsoever," in a vague but grand manner. Obviously not much care was devoted in these transactions to legal theory or even to what was actually transpiring abound the plant. And by the time the matter was set for the trial which was to determine whether or not the employer was justified in securing protection of this sort, the strike was broken up, either through the obedience of the union leaders or because they were in jail for disobedience.

"As a rule, judges behaved in the same casual fashion after the trial between the two parties, when they had to decide whether or not they should grant formal injunctions and, if they decided to do so, how far they should go in preventing what kind of conduct by whom. At these trials, of course, both sides were represented and the judges took testimony, affording opportunity for cross examination. These proceedings took place before judges without juries. Frequently the evidence indicated actual or imminent violence and other unlawful conduct on the part of union members. But whether it did or did not, too many judges got into the habit of making findings of actual or threatened violence and other specifically unlawful conduct where nothing of the sort had occurred or was imminent. In these injunction suits it was customary to serve a summons only upon the leaders of the unions involved, although the injunctions were issued virtually against the world in general. Consequently, anyone violating the broad and comprehensive terms of such injunctions was punished for contempt, whether or not he had been served as a party in the suit, had had the injunction called to his attention by service of its provisions on him, or had ever heard of the injunction at all. For instance,

a barber, usually patronized by railroad men, was held in contempt for violation of the broad injunction issued in the 1922 railroad workers' strike because he had hung in his window a sign to the effect that no scabs or strike-breakers were wanted as customers.

"Injunctions were drawn in such technical and ambiguous legal terms that one leading state supreme court soothingly compared them to the intricately worded corporate mortgage. And there was seldom any attempt to couch these injunctive prohibitions in simple language which workmen could understand, either in English or in any of the foreign languages prevailing among large sections of our labor population! Too often the judges signing these injunctions did not draft them personally but followed the prevailing custom - perfectly proper in litigation involving less contentious issues - of permitting counsel for the complaining employers to prepare them instead. Unfortunately such injunctions left little, if any, scope for even peaceful economic coercive activity on the part of unions. And the harm occasioned to unions by this summary suppression was not undone even when appellate courts, as they seldom but occasionally did, set aside or modified injunctions because they were against the weight of the evidence adduced or contrary to established law. By that time months had passed, the possible effect of the strike or boycott was long since neutralized, and the union's investment of time, effort and money to organize the pressure was lost."

"But perhaps the most alarming feature of the labor injunction, less obvious than the shortcomings just discussed, was the ease with which its use increasingly tempted judges to dispense with any well-founded independent theory of illegality. After all, the injunction was originally supposed to be a kind of remedy. And judicial remedies were supposed to operate as a control of some sort of illegal conduct, actual or threatened. But many courts using the injunction against the activities of labor unions fell into the bad habit of overlooking the need for proof of specific and independently unlawful conduct, either already committed or only threatened, on which to base their injunctive orders. They came to look at much of organized labor's economic coercive activity as enjoinable in itself, without bothering to find or to state in their opinions that it was also unlawful. This was an unfortunate tendency which fed on itself. It seemed to lead many courts to grant sweeping injunctions on the basis of personal or class dislike of organized labor's economic program instead of in accordance with settled standards of law. A process of this sort lent itself admirably to the use of the illegal purpose doctrine.

"Instead of pondering over the law governing certain kinds of conduct in an endeavor to determine its legality or illegality, many courts simply looked at the purpose of the conduct or at the economic context in which it occurred,

disregarding completely the legal significance of the conduct in itself. And since no generally recognized body of law existed, aside from that governing various specific types of conduct, by which to judge the legality of purposes and contexts, many courts asked to issue injunctions unfortunately slipped into the custom of using as standards their own notions of what they believed to be good or bad as a matter of policy. In this way too many judges began to think of labor union activity as something enjoinable in itself. And since union leaders could not anticipate the vagaries of the judicial mind, they could not define for themselves or their followers the area of permissible economic conduct within which they were legally free to act. This unwholesome state of affairs, where labor unionists never knew just where they stood under the shadow of a brooding and undefined judicial power, involved an almost certain threat of suppression to most of organized labor's bargaining and organizational program, without benefit of any legislative declaration of policy or, indeed, of any rules of the game that might be called law."

USE OF INJUNCTION IN LABOR DISPUTES

New union members recently saw a revival of the use of the injunction in industrial disputes which for years blocked workers progress.

The miners laid down their tools when the Secretary of the Interior refused to remedy violations of their contract. Then the United States Government sought and obtained an injunction ordering miners to work and forbidding all union officials from in any way encouraging work stoppage. The action of Federal Judge Goldsborough returned unions to "government by judges" that prevailed between 1880 and 1932.

Before 1932, unions found judges were enemies who defeated efforts to improve conditions of work and pay. Instead of assuring even-handed justice to the poorest and humblest as well as to the richest and most powerful citizens, our courts had become the allies of employers in efforts to prevent workers from establishing collective bargaining or even exercising their constitutional rights. They did this by using injunction powers for purposes never intended.

The origin of the use of judge's orders to prevent irreparable injury to physical property was developed in the equity courts of England and was brought to this country along with common law by English colonists. English courts used it to protect property and did not use it to protect personal intangible rights. To protect this second type of rights by use of the injunction was first made by state courts of the United States. Later a Federal Equity court which had appointed a receiver for a bankrupt railroad, extended the use of the injunction to ordering railway employees

The overriding problem of trade unions, until relief is forthcoming, is the Taft-Hartley Law. The effect of this legislation which still professes that trade unions are social institutions worthy of social approval, has been to divert efforts which should have been directed into constructive planning and into legal prosecution and court cases to establish the meaning of the Law. In reviving the use of injunctions in law disputes, the Law revives all of the abuses which the Norris La Guardia Act ended. Under this Act, employers and the machinery of the N. L. R. B. are harassing one of the oldest and most constructive trade unions in the country. Procedures and principles evolved out of nearly a hundred years of experience and collective bargaining are being attacked in a way calculated to destroy the union. Yet these arrangements have developed with the sanction of unions and employers. There is no more democratic union than the I. T. U.--conspicuously free of corruption and questionable practices.

The long-negotiated union shop and the traditional right to boycott are hedged about by restrictive regulations. These are rights that have been strategic in the building up of our strength. The Board's prosecuting attorney is preparing to spend over a million dollars to verify the fact that building trades want the union shop which has been the basis of union services, and which enables the unions to provide in record time the workers necessary to the cantonments and the factories for war production. How can unions assume responsibility for contracts if denied control discipline over membership? The law attempts to maintain the right of a worker to belong to a union or not to belong with an impartiality that reveals little conviction that unions are the agencies which promote the welfare of wage-earners.

The Act in addition to first steps in regimenting unions, s recognition by the Board of unions whose officials fail or ose to swear that they are not members of the communist party. here is no law which outlaws the communist party or makes membership in the party a crime. These special provisions are directed against workers as a group. While such unions cannot appeal to the Board to maintain neither they nor any other union can expel communist members or any other obstructists if they pay their dues.

This law infringes on the basic right of a democratic society to form and control voluntary organizations, provided their purposes are in keeping with social policy. If their procedures are not in keeping with the law of the land, then punishment may be sought under the law. It is of primary importance that freedom of association should not be impaired for any group.

Another provision which the Federation believes amounts to effective restriction of participation in political decisions is that which denies the right to unions to advise their members on how political treated requests for legislations which unions authorized their spokesmen to promote. By this arbitrary regulation, unions must set up a separate political organization if they wish to influence elections in the interests of wage earners.

We did our best to defeat this legislation in Congress. Experience confirms our conviction that the measure is unwise, contrary to principles underlying democratic development and likely to build up a bureaucratic despotism that can rob all industry of self-government.

We are demanding unconditional repeal of the Taft-Hartley Law, and will carry our demand into the campaign.

affiliated unions, it agents, friends, sympathizers and even counsel [illegible]

In the past decade of the 19th century trade unions had made progress in establishing its legality of unions but though membership in trade unions was no longer held to be an illegal conspiracy against their employer, the effective functions of unions were repeatedly stopped by injunction, law suites and application of anti-trust laws.

Instead of discussing fair terms and conditions of work with representatites of their workers, employers sent their lawyers to the nearest federal judge to secure an injunction which made picketing, peaceful assembling, free speech, payment of union benefits, etc. crimes for which workers could be fired or imprisoned. So numerous were injunctions and so carelessly were the temporary ones written, that the immediate effect was workers were denied even constitutional rights long enough to break the strik or other efforts to get a union agreement with redress of grievances.

The A. F. of L. tried to get legislation correcting abuses of the injunctive which subjected workers to government by judges. In order to bring all of the issues clearly before Congress and the voters of the country, the A. F. of L. selected a test case to be contested up to the Supreme Court. They selected the Buchs Stove and Range Co. The President of the company was an aggressive opponent of unions who withdrew his patronage from a printing company because it granted its employees the 8 hour day. When this company refused to When this company refused to continue a 9 hour day or to reach an agreement with their employees, the E. C. was asked to put the firm on its "We Don't Patronize" list. When this boycott was voted, Mr. Van Cleave from the convenient Judge of the D. C. to enjoin the members and officers of the A. F. of L., officers and members of all

affiliated unions, it agents, friends, sympathizers and even counsel forbidding them from publishing, printing, writing or verbal or orrally communicating the fact the Buchs Stove and Range Co. was on the unfair list. The A. F. of L. was forbidden to include the company's name in the list or to declare directly or indirectly that the labor dispute existed.

The A. F. of L. directed its officials to maintain the rights of labor. The constitutional right of free speech was involved. Even before the legality of injunction was determined, Van Cleave asked the Court to find the Pres., the 1st Vice-President and the Sec. of the A. F. of L. guilty of violating the injunction. After protracted hearings Justice Wright found Samuel Gompers, John Mitchel and Frank guilty of contempt of court and sentenced them to serve 12, 9, and 6 months sentance. The case was carried through all courts and to the Supreme Court which did not pass on the issues but took refuge in the Statute of Limitations to delcare the case moot. This trick and the vindictiveness of Judge Wright focused attention on the need for assuring workers equality before the law with employers. Simultaneously with this case, the Danbury hatters were demonstrating the gross injustice resulting from legal failure to distinguish between hats and hat makers in the suits against their union. The union struck for a closed shop. The company brought suit for three fold damages and attaches workers savings and property. The U. S. Supreme Court ld that the Sherman Anti-Trust law applied to the hatters.

These cases helped to carlify labor's problem of getting islative relief. At the same time, the A. F. of L. was organizing non-partisan political machinery to help in getting remedial slation. The immediate result was a union-card group in Congress orked with the Federation in drafting legislation to provide e for wage-earners. We took one program to political party

conventions to ask its incorporation in party platforms and submitted it to party candidates asking them to state their positions on the specific labor proposal included.

After four years of work pressing home labors' greivances and rights in the minds and consciences of political representatives, we won our first major success in the enactment of legislation authorizing the U. S. Department of Labor to promote the welfare of wage earners. The first Secretary of Labor was Wm. B. Wilson, who had been the leader of our union card group and a member of the U. M. W. Thus labor had a representative in the President's cabinet so that its views were considered in the formulation of national policy.

Our next mile stone in labor progress were the labor sections of the Clayton Anti-trust which exoluded Labor from the application of anti-trust legislation, and epitomizing the underlying philosophy in the initial sentence in Section 6: "The labor power of a human being is not a commodity or article of commerce" and the section restricting the use of the injunction process to illegal acts. This legislation was hailed as a victory but labor when we found it was technically faulty, we redoubled our efforts for relief from denial of our fundamental civil rights. In 1932 we gained the Norris LaGuardia Act which forbad federal courts to issue injunctions in labor disputes. At last workers were assured opportunity to exercise civil rights free from legal harrassment.

<u>R. R. Labor - in 1933</u>.

Then came a series of laws giving public santion to collective bargaining and assuring workers opportunity to progress through this channel-beginning with the Railway Labor Act, followed by Sec. 7 (a of the N. R. A. and the National Labor Relations Act. The Wagner Act

program. And finally the

of 1935 stated that "The denial by employers of the right of employees to organize and the refusal of employers to accept the procedure of collective bargaining lead to strikes and other forms of industrial strife and unrest." The law was drafted to overcome difficulties which prevented labor from having equal power with employers in collective bargaining. Workers were really free to join unions and elect representatives to promote their welfare.

The Social Security Act authorized Federal Old Age insurance, grants of assistance to state public assistance programs, and provided a leverage which resulted in unemployment compensation laws in all states and territories. Thus workers had protection against dependency in those emergencies against which they could not provide.

These laws were followed by the Fair Labor Standards which supplemented the Ball Davis and Walsh Healy Acts by providing federal standards of wages and hours in private employement.

This body of laws was the frame-work of a labor coed which gave wage earners opportunity to share in free enterprise and benefit by the civil rights assured by our democracy.

The moral and political reaction following World War II gave reactionary employers their opportunity take from labor equality in collective bargaining and some of the security and opportunities workers had gained.

First the Department of Labor had been nearly dismembered- a rocess begun under guise of reorganization; first, the Immigration ureau and its Americanization work were transferred elsewhere followed transfer of the Children's Bureau, the U. S. Employment Service, e Conciliation Service. Social Insurance was diverted to another ncy as was Federal Workmen's Compensation. Only four divisions are t from what was a broad labor service program. And finally the

appropriation of the Department has been cut to cripple its work.

Next substantial legislation to amend the N. L. R. B. enacted over Labor's nation-wide protest took from labor the safeguards which made for equal strength in collective bargaining; restored the use of injunctions to stop and defeat strikes; substituted regimentation for freedom of contract; undermined the authority of the union by providing special channels for non-unionists and outlawing security provisions; collective bargaining has been restricted and hampered by limitations on the right to strike, by the facility with which govertmental officials can obtain injunctions from Justice Goldsborough who is ready to oblige (the injunction disarms the union but provides no solution for the industrial dispute); encourages law suits against unions by disgruntled workers and employers; and of fatal consequences to our democratic institutions necessittating the formation of political organizations of wage-earners separately from their unions thus encouraging a labor party. The T. H. law drafted by corporation lawyers of anti-union bias practically annuls the labor provisions of the Clayton Act, the Norris-LaGuardia Act and the Wagner Act. By/preventing increased rates provided for old age insurance from going into effect and by not adjusting the benefit to present earnings and prices, old age benefits have not been offered the protection intended. The average $25 monthly benefit will not permit a worker to live independently. Congress has returned the U. S. employment Service to the states so that federal direction and industry-wide service are declining.